

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANTHONY MERCADO,
Plaintiff,

Index No.
Date of Purchase:

SUMMONS

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, N.Y.P.D.
OFFICER MARTINEZ (TAX REG. # 945959),
JOHN DOE N.Y.P.D. OFFICERS NUMBERS 1, 2,
3, 4, 5, 6, 7, individually and as employees of the
New York City Police Department,
Defendants.

To the Persons Named as Defendants Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on the Plaintiffs, by their attorneys, at the address set forth below, and to do so within twenty (20) days after the service of this Summons (not counting the day of service itself), or within thirty (30) days after service is complete if the Summons is not delivered personally to you within the State of New York. **YOU ARE HEREBY NOTIFIED THAT** should you fail to answer or appear, a judgment will be entered against you by default for the relief demanded below.

Should the Defendants fail to appear herein, judgment will be entered by default and the sum of damages shall be determined at an inquest.

Dated: New York, New York
October 6, 2017

Goldberger & Dubin, PC

by:



Edgar L. Fankbonner, Esq.
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New York, New York 10013
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TO: City of New York
Attn: Corporation Counsel
100 Church Street, 5th Floor
New York, New York 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANTHONY MERCADO,
Plaintiff,

Index No.

Date of Purchase:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, N.Y.P.D.
OFFICER MARTINEZ (TAX REG. # 945959),
JOHN DOE N.Y.P.D. OFFICERS NUMBERS 1, 2,
3, 4, 5, 6, 7, individually and as employees of the
New York City Police Department,
Defendants.

Plaintiffs, by their attorneys, Goldberger & Dubin, PC, complain of Defendants and say
that:

**AS AND FOR A FIRST CAUSE OF ACTION
(Malicious Prosecution)**

1. Plaintiff is an individual residing in Queens County, New York.
2. Upon information and belief, at all times hereinafter mentioned, defendant the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, at all times hereinafter mentioned, defendant the City of New York, its agents, servants, and employees, operated, maintained and controlled the New York City Police Department ("N.Y.P.D.") including all police officers thereof, and defendant the City of New York is vicariously liable for the violations of New York State tort law by its servants, agents, and employees under the principle of respondeat superior, as at all relevant times all defendant officers were acting for, under, and in furtherance of the business of their employer and within the scope of their employment.

4. Upon information and belief, at all times hereinafter mentioned, defendants N.Y.P.D. Officer “Martinez,” Tax Reg. No. 945959, and N.Y.P.D. Officers John Does 1 through 7 were employed by defendant the City of New York, as police officers.
5. N.Y.P.D. is a local government agency duly formed and operating under and by virtue of the Laws and Constitution of the State of New York, and defendant the City of New York is responsible for the policies, practices, and customs of the N.Y.P.D. as well as the hiring, screening, training, supervision, control, and discipline of its officers and civilian employees.
6. Each and all of the acts of the Defendants alleged herein were committed by the City of New York, N.Y.P.D., their agents, servants, and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the State of New York and the City of New York and under the authority of their office as police officers or detectives of said state and city.
7. On or about November 3, 2016, the Plaintiff served upon defendant the City of New York a Notice of Claim setting forth the time, place, and manner in which the claim arose, and indicating that said Notice of Claim was served within ninety days of the occurrence herein.
8. More than thirty days have elapsed since the presentation of said Notice of Claim and no adjustment has been made by the defendants.
9. This action is commenced within one year and ninety days after the occurrence of the event upon which this claim is based.
10. On or about July 8, 2016, Plaintiff was walking in the vicinity of his home at or near 115-11 146th Street, Ozone Park, New York, when he was seized by approximately eight N.Y.P.D. officers, including arresting officer P.O. “Martinez,” Tax. Reg. No. 945959, who harassed and accosted him verbally, threatened him, and placed him under arrest when Plaintiff had

committed no offense whatsoever, and done nothing to give rise to reasonable suspicion or probable cause for the officers to interfere with his liberty in any way; and said officers demanded that he hand over narcotics, which the Plaintiff did not have, and provide the officers with information about narcotics sales in the area, which the Plaintiff also did not have.

11. On said date, the aforesaid defendant officers proceeded to place the Plaintiff in a police van, where they strip-searched him in the presence of other prisoners, and found no contraband on the Plaintiff whatsoever.
12. The defendant officers then took the Plaintiff to the 113th precinct, where they strip-searched him again.
13. The defendant officers then issued him a summons charging him with a violation of Administrative Code § 10-125 (2B), falsely alleging that the Plaintiff possessed an open container of alcohol in public – specifically, “an open 30 mL Bacardi Rum bottle in public view on a public sidewalk” – which allegation the officers fabricated in its entirety – and ordering him to appear in the AR-2 Summons Part in Queens County on September 20, 2016.
14. There was no legitimate reason for the officers to allege that the Plaintiff had possessed an open container of alcohol, and they did so with malice, with the intention of inflicting harm on the Plaintiff and of justifying their illegal search and seizure of the Plaintiff.
15. The Plaintiff appeared in the Queens County Summons Part on September 20, 2016 in compliance with the summons, which part heard the matter and, when the Plaintiff refused to plead guilty to any offense or accept an Adjournment in Contemplation of Dismissal or any

other limitation on his liberty, it then transferred to Part AP-1 of Queens County Criminal Court, where the case was heard on that date and adjourned to October 31, 2016.

16. The Plaintiff appeared in Queens County Criminal Court, Part AP-1 on October 31, 2016, on which date the Judge of the Criminal Court dismissed the complaint.
17. The Plaintiff did not contribute to or cause in any way the conduct of the Defendants, their agents, servants, and employees.
18. As a result of the aforesaid actions of the Defendants, the Plaintiff was wrongfully deprived of his liberty and privacy, and suffered extreme emotional and distress.
19. As a result of the aforesaid actions of the Defendants, the Plaintiff is fearful of walking in his own neighborhood and is fearful of the N.Y.P.D.
20. By reason of the aforesaid, the Plaintiffs have been damaged in the amount of \$5,000,000, but in no event an amount less than the lower jurisdictional limits of this court, and are entitled to an award of punitive damages due to the intentional and outrageous conduct of the Defendants.

**AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest)**

21. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 – 20 as if fully set forth herein.
22. The Defendants arrested the Plaintiff without probable cause in that the Plaintiff had committed no crime whatsoever, nor given any reason for the Defendants to believe that he had committed an offense; and the Defendants confined the Plaintiff in a police van and then at the 113th precinct of the N.Y.P.D. for no legitimate reason.

23. In so doing, the Defendants unlawfully interfered with the Plaintiff's right to walk freely in his own neighborhood and nor be subject to unlawful searches and seizures.
24. The Plaintiff was aware of his confinement by the Defendants and did not consent to being confined.
25. As a result of the aforesaid actions of the Defendants, the Plaintiff was wrongfully deprived of his liberty, privacy, and bodily integrity, and suffered extreme emotional and psychological distress.
26. As a result of the aforesaid actions of the Defendants, the Plaintiff is fearful of walking in his own neighborhood and is fearful of the N.Y.P.D.
27. By reason of the aforesaid, the Plaintiff has been damaged in the amount of \$5,000,000, and is entitled to an award of punitive damages to the intentional and outrageous conduct of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION
(Assault)**

28. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 – 27 as if fully set forth herein.
29. On July 8, 2016, the Defendants twice subjected the Plaintiff to a search of his person that included forcing the Plaintiff to undress in the presence of other individuals and then the Defendants searching the intimate parts of his body in the presence of others.
30. The Defendants conducted the aforesaid searches for no legitimate purpose, for no lawful reason, and without the Plaintiff's consent.

31. As a result of the aforesaid actions of the Defendants, the Plaintiff was wrongfully deprived of his liberty, privacy, and bodily integrity, and suffered extreme emotional and psychological distress.
32. As a result of the aforesaid actions of the Defendants, the Plaintiff is fearful of walking in his own neighborhood and is fearful of the N.Y.P.D.
33. By reason of the aforesaid, the Plaintiff has been damaged in the amount of \$5,000,000, and is entitled to an award of punitive damages to the intentional and outrageous conduct of the Defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION
(42 USC § 1983 Violation of Right to Be Free from Unreasonable Searches
and Seizures and State Law Claim of Violation of Article I § 12 of the
New York State Constitution)**

34. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 – 31 as if fully set forth herein.
35. From July 8, 2016 through October 31, 2016, the Defendants deprived the Plaintiff, under color of statute, ordinance, regulation, custom, or usage, of a right, privilege, and immunity secured to the Plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States, 42 USC § 1983 et seq., Article I, § 12 of the Constitution of the State of New York, New York Civil Rights Law, Article 2 and § 40 (c).
36. At the aforementioned time and place, the Defendants denied the Plaintiff his right to be free from unlawful searches and seizures by illegally arresting him and searching his person, including subjecting him to two strip-searches and thus compromising his bodily integrity, with no lawful basis and for no legitimate or lawful purpose.

37. This unlawful search, seizure, and arrest of the Plaintiff are part of a longstanding pattern of harassment, abuse, brutality, assaultive conduct, discrimination, unlawful stops, seizures and searches and arrests. This pattern and practice was the result of institutionalized tolerance and indifference, improper and unreasonable hiring, training, supervision, and discipline and from the use of arrest quotas. This pattern and practice was allowed to continue because of the deliberate indifference of policy-making officials. That this is so is demonstrated amply by the Defendant police officers' utter disregard of known principles of law and procedure, including the requirement that no individual be subject to search or seizure absent probable cause to believe that the individual has committed a crime.
38. Thus the Plaintiff was deprived of his rights, privileges, and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly described as the Plaintiff's right to be secure in his person, papers, and effects against unreasonable searches and seizures, and to not be deprived of life, liberty, and property without due process of law.
39. Said violation of the Plaintiff's rights was caused by the Defendants, their agents, servants, and employees, without justification or provocation, any warrant or other legal process, and without authority of the law.
40. That the Defendants, their agents, servants, and employees acting within the scope of their authority and within the scope of their employment, conducted unlawful searches of the Plaintiff and his property, even though the Defendants, their agents, servants, and employees, had the opportunity to know or should have known that their conduct was unlawful, unjustified, and unprovoked and that no probable or reasonable cause or exigent circumstances existed for the searches conducted or for the arrest of the Plaintiff.

41. The Defendants conspired together to violate the Plaintiff's rights in that the individual defendants acted in concert to unlawfully violate the Plaintiff's rights. Said conspiracy included the overt acts of unlawfully searching the Plaintiff and his property, arresting the Plaintiff, and issuing a false summons to the Plaintiff charging him with an offense that the Defendants knew he did not commit.
42. By reason of the unlawful violations of the Plaintiff's rights, the Plaintiff was subjected to great injuries, indignities, humiliation, and ridicule, and greatly injured in his personal circumstances, and was caused to suffer injury and pain and extreme emotional distress as well as financial losses including attorney's fees to defend against the false charges brought against him by the Defendants.
43. By reason of the aforesaid, the Plaintiff has been damaged in a sum of \$5,000,000.

WHEREFORE, Plaintiff demands judgment against the defendants in the amount of \$20,000,000 and reasonable attorney's fees, together with costs and disbursements resulting from this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this court may deem just and proper under the circumstances.

Dated: New York, New York
October 6, 2017

Respectfully submitted,
Goldberger & Dubin, P.C.

by: 
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANTHONY MERCADO,
Plaintiff,

Index No.

Date of Purchase:

VERIFICATION

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, N.Y.P.D.
OFFICER MARTINEZ (TAX REG. # 945959),
JOHN DOE N.Y.P.D. OFFICERS NUMBERS 1, 2,
3, 4, 5, 6, 7, individually and as employees of the
New York City Police Department,
Defendants.

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the courts of the State of New York States that he is the attorney of record for the Plaintiff, Anthony Mercado, in the within action; that the deponent has read the foregoing Complaint, knows the contents thereof; that the same are true to the deponent's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matter deponent believes them to be true. The deponent further says that the reason this verification is made by the deponent and not the Plaintiff, is that the Plaintiff is not presently within the County of New York where the deponent maintains his office. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: conversations with the defendant, books, records, investigation reports and correspondence now in deponent's possession.

GOLDBERGER & DUBIN, PC

Dated: New York, New York
October 6, 2017

by: 
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(212) 431-9380
Attorneys for the Plaintiff